

TITLE 477 - MEDICAID ELIGIBILITY

CHAPTER 28 - CHILDREN ELIGIBLE FOR IV-E ASSISTANCE, NON-IV-E ADOPTION SUBSIDY, FORMER FOSTER CARE CHILDREN

Chapters 477 NAC 20 through 28 apply to the following: Aged, Blind, and Disabled (ABD); Medically Needy (MN); Medicaid Insurance for Workers with Disabilities (MIWD); Women's Cancer Program; Transitional Medical Assistance (TMA); Former Foster Care; Emergency Medical Services Assistance (EMSA); Children and Young Adults Eligible for IV-E Assistance

001. SCOPE AND AUTHORITY. These regulations govern the services provided under Nebraska's Medicaid program as defined by the Medical Assistance Act, Nebraska Revised Statute § 68-901 et seq.

002. CHILDREN ELIGIBLE FOR IV-E ASSISTANCE. A child eligible for federally funded assistance through the Title IV-E program is Medicaid eligible. This includes subsidized adoption and subsidized guardianship.

002.01 ELIGIBLE CHILDREN. A child qualifying for IV-E assistance is eligible for Medicaid if:

- (A) The child is IV-E eligible and is in the custody of the Department or a court of competent jurisdiction;
- (B) The child is in the custody of another state that made the IV-E determination, but the child lives in Nebraska; or
- (C) The child has been determined eligible for IV-E subsidized guardianship or adoption assistance by Nebraska, or another state but the child lives in Nebraska.

002.02 AGE. A child who is IV-E eligible and under 19 years old shall be eligible for Medicaid, with the following exceptions:

- (A) A child who is in an institution for mental disease (IMD) is eligible until he or she turns 21 years old; and
- (B) A young adult who entered into an adoption or guardianship agreement after reaching 16 years old and is IV-E eligible may be eligible for Medicaid until he or she turns 21 years old.

002.03 INCOME AND RESOURCES. A child eligible for IV-E is exempt from income and resource tests.

002.04 EFFECTIVE DATE OF MEDICAID ELIGIBILITY. Medicaid eligibility is effective the first day of the month in which custody was first granted if the child was IV-E eligible in that same month.

002.05 CONTINUOUS ELIGIBILITY. Children who are eligible for Medicaid due to IV-E eligibility shall receive six months of continuous eligibility from the date of initial Medicaid eligibility. See 477 NAC 3.

002.06 CHILD PLACED IN A JAIL OR A DETENTION FACILITY. Medicaid cannot be used as a funding source for medical care during incarceration.

002.06(A) EXCEPTION. When a child placed in jail or detention leaves that setting and goes to an acute medical treatment setting for at least 24 hours, medical treatment in the acute setting may be billed to Medicaid if eligibility requirements are otherwise met.

003. CHILDREN ELIGIBLE FOR NON-IV-E ADOPTION. A special needs child eligible for non-IV-E subsidized adoption assistance may be Medicaid eligible if he or she meets special needs criteria.

003.01 ELIGIBLE CHILDREN. A child qualifying for non-IV-E subsidized adoption assistance is eligible for Medicaid if the following conditions are met:

- (A) An adoption agreement, other than an agreement under Title IV-E, between the State of Nebraska and the adoptive parent(s) is in effect;
- (B) The Department has determined that the child cannot be placed for adoption without Medicaid coverage because of special needs for medical or rehabilitative care;
- (C) The child meets either of the following requirements:
 - (i) He or she would have been eligible for Medicaid before the adoption agreement was entered into; or
 - (ii) He or she would have been eligible for Medicaid before the adoption agreement was entered into, if the eligibility standards and methodologies of the Title IV-E program were used without employing the threshold Aid to Dependent Children (ADC) eligibility determination; and
- (D) The child is under 19 years old.

003.02 INCOME AND RESOURCES. A child who meets these criteria is exempt from income and resource tests.

004. FORMER FOSTER CARE CHILDREN.

004.01 FORMER FOSTER CARE CHILDREN. Individuals under 26 years old who were in foster care in any state and receiving Medicaid when the individual became 18 or 19 years old, or such higher age at which the state's federal foster care assistance ends.

004.02 INCOME AND RESOURCES. former foster care children are exempt from income and resource tests.

004.03 ELIGIBILITY REQUIREMENTS. In order to receive Medicaid, the applicant or client must:

- (A) Be under 26 years old;
- (B) Have been a client at 18 years old or such higher age at which the State's foster care assistance ends under title IV-E of the Social Security Act;
- (C) Have been in foster care in any state at 18 or such higher age at

which the state's foster care assistance ends under title IV-E of the Social Security Act; and

(D) Not be enrolled in mandatory Medicaid coverage through the Parent and Caretaker Relatives, Pregnant Women, Children, or Aged, Blind, and Disabled (ABD) eligibility groups.

